

		<i>Real Estate Partners, LLC</i> (S.D. Cal., Mar. 31, 2025, No. 23CV1729-LL-VET) 2025 WL 958598, at *2.) Therefore, the delegation clause is enforceable and arbitrability of Plaintiff's claims is a question for the arbitrator. <u>Non-Signatory Status of other parties:</u> Plaintiff contends arbitration should not be compelled because her daughter who is a minor has also filed a separate complaint against Defendant for her personal injuries and is not bound by the arbitration agreement. Plaintiff intends to file a motion to consolidate both cases. The daughter's separate lawsuit is not before the court and is not a basis to deny arbitration. The motion is GRANTED, and the action is stayed, pending the completion of arbitration. Defendant to give notice.
9	23-01317622 Miller vs. Anaheim Marriott	Motion for Summary Judgment and/or Adjudication Defendants Marriott Hotel Services, LLC and Marriott International, Inc.'s Motion for Summary Judgment is DENIED. Plaintiff's objections nos. 2, 6, and 9 to Exhibits A, B, and D are granted. "Authentication of a writing means (a) the introduction of evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is or (b) the establishment of such facts by any other means provided by law." (Evid. Code, § 1400.) Defendant submits Exhibits A and D through John Kalinski's declaration. Kalinski only avers to being the Defendant's area general manager and the Exhibits A and D are true and correct copies of the documents. Kalinski fails to provide any context which the Court may use to determine Kalinski would know the documents are what he claims they are. Similarly, Exhibit B is submitted through Roger Bracken's declaration. Bracken's declaration also provides insufficient information to authenticate the document. Thus, Plaintiff's objections are sustained. The Court declines to rule on Plaintiff's remaining objections as they are not dispositive to the Motion. "A valid release precludes liability for risks of injury within the scope of the release." (<i>Anderson v. Fitness International, LLC</i> (2016) 4 Cal.App.5th 867, 877). Defendants rely on the waiver contained in the Waiver and Appearance Agreement which was attached as Exhibit B. (UMF 4-8.) However, Exhibit B is not admissible, thus, Defendants have failed to show the existence of a valid release. Therefore, Defendants' argument the waiver precludes liability is unsupported by admissible evidence. "[A]s a general rule, a landowner does not have a duty to remedy or warn of an obviously dangerous condition on his or her property."

		(<i>Nicoletti v. Kest</i> (2023) 97 Cal.App.5th 140, 146.) Similarly, Defendants only evidence in support of this claim is the photograph attached as Exhibit D which is not admissible. (UMF 13.) Thus, Defendants have failed to submit any admissible evidence to show the condition was open or obvious. Accordingly, Defendants have failed to meet their burden of proof of showing a complete defense to Plaintiff's cause of action and their Motion is denied.
11	23-01302857 <i>Providence Capital Funding, Inc. vs. Team MMJ Trucking LLC</i>	Motion for Summary Judgment and/or Adjudication Plaintiff Providence Capital Funding, Inc.'s Motion for Summary Judgment, or, in the Alternative, Motion for Summary Adjudication is GRANTED. Plaintiff Providence Capital Funding, Inc. ("Plaintiff") moves for summary judgment in its favor against defendants Team MMJ Trucking LLC ("MMJ"), Mike Springer ("M. Springer") and Tonya Springer ("T. Springer") (collectively, "Defendants") on the causes of action against them that are alleged in Plaintiff's complaint. Alternatively, Plaintiff moves for summary adjudication that MMJ has no defense to the first cause of action for breach of contract; Defendants have no defense to the second cause of action for recovery of personal property; defendants M. Springer and T. Springer have no defense to the third cause of action for breach of guaranty; and each of Defendants' 16 affirmative defenses are without merit as a matter of law. The Court declines to consider Defendants' untimely opposition, which was served on 7/6/26 and filed on 7/7/26. Defendants' opposition was due on 6/26/26. (See Code Civ. Proc., § 437c, subd. (b)(2) [20 days before the 7/16/26 hearing date].) Courts have discretion "to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for late submission." (<i>Bozzi v. Nordstrom, Inc.</i> (2010) 186 Cal.App.4th 755, 765; <i>Kapitanski v. Von's Grocery Co., Inc.</i> (1983) 146 Cal.App.3d 29, 32-33 [court can summarily reject late-filed papers under local rules, but if it considers them at all, it must apply Code Civ. Proc., § 473 standards, and it is an abuse of discretion to refuse relief if "excusable neglect" shown]; CRC, rule 3.1300(d).) Defendants have not established that their untimely service and filing of their opposition was due to excusable neglect. The Court declines to rule on Plaintiff's objections (ROA 182, 183) as immaterial to the Court's ruling but the objections are preserved for purposes of appeal. (See <i>Reid v. Google, Inc.</i> (2010) 50 Cal.4th 512, 526 ["the trial court's failure to rule expressly on any of Google's evidentiary objections did not waive them on appeal"]; see Code Civ. Proc., § 437c, subd. (q).) Legal Standard